matter upon which such jurisdiction is to be exercised, used the word "controversies" only. The act of congress more particularly mentions civil controversies, a qualification of the general word in the constitution, which I do not doubt every reasonable man will think well warranted, for it *cannot be presumed, that the general word "controversies" was [*432 intended to include any proceedings that relate to criminal cases, which in all instances that respect the same governor only, are uniformly considered of a local nature, and to be decided by its particular laws. The word "controversy" indeed, would not naturally justify any such construction, but nevertheless it was perhaps a proper instance of caution in congress to guard against the possibility of it.

A general question of great importance here occurs. What controversy of a civil nature can be maintained against a state by an individual? The framers of the constitution, I presume, must have meant one of two things—Either, 1. In the conveyance of that part of the judicial power which did not relate to the execution of the other authorities of the general government (which it must be admitted are full and discretionary, within the restrictions of the constitution itself), to refer to antecedent laws for the construction of the general words they use: or, 2. To enable congress in all such cases to pass all such laws as they might deem necessary and proper to carry the purposes of this constitution into full effect, either absolutely at their discretion, or, at least, in cases where prior laws were deficient for such purposes, if any such deficiency existed.

The attorney-general has indeed suggested another construction, a construction, I confess, that I never heard of before, nor can I now consider it grounded on any solid foundation, though it appeared to me to be the basis of the attorney-general's argument. His construction I take to be this: "That the moment a supreme court is formed, it is to exercise all the judicial power vested in it by the constitution, by its own authority, whether the legislature has prescribed methods of doing so, or not." My conception of the constitution is entirely different. I conceive, that all the courts of the United States must receive, not merely their *organization* as to the number of judges of which they are to consist; but all their authority, as to the manner of their proceeding, from the legislature only. This appears to me to be one of those cases, with many others, in which an article of the constitution cannot be effectuated, without the intervention of the legislative authority. There being many such, at the end of the special enumeration of the powers of congress in the constitution, is this general one: "To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution in the government of the United States, or in any department or officer thereof." None will deny, that an act of legislation is necessary to say, at least, of what number the judges are to consist; the President, with the consent of the senate, could not nominate a number at their *discretion. The [*433 constitution intended this article so far, at least, to be the subject of a legislative act. Having a right thus to establish the court, and it being capable of being established in no other manner, I conceive it necessarily follows, that they are also to direct the manner of its proceedings. Upon this authority, there is, that I know, but one limit; that is, "that they shall not exceed their authority." If they do, I have no hesitation to say, that